

UNITED STATES DISTRICT COURT  
MIDDLE DISTRICT OF FLORIDA  
ORLANDO DIVISION

DEAN BRISCOE,

Plaintiff,

v.

Case No: 6:19-cv-182-Orl-22DCI

MENZIES AVIATION (USA), INC.,

Defendant.

\_\_\_\_\_ /

**AMENDED COMPLAINT**

COMES NOW, the Plaintiff, by and through the undersigned counsel, and sues the Defendants, and alleges:

1. This is an action for damages in excess of Fifteen Thousand and no/100 Dollars (\$15,000), exclusive of costs, interest, and attorneys' fees.

2. At all times material hereto, the Plaintiff was a resident of Orange County, Florida.

3. At all times material hereto, the Defendant, ERNYEPHER PEREZ, was a resident of Orange County, Florida.

4. At all times material hereto, the Defendant, MENZIES AVIATION (USA), INC., was a Foreign Profit Corporation authorized to do business in the state of Florida.

5. At all times material hereto, Defendant, ERNYEPHER PEREZ, was operating a motor vehicle owned by Defendant, MENZIES AVIATION (USA), INC.

6. On or about July 26, 2017, Plaintiff was the driver of a meal catering truck parked behind a Southwest plane at the Orlando International Airport.

7. At that time and place, Defendant, ERNYEPHER PEREZ, negligently failed to operate his vehicle in a reasonably safe manner, and as a result the Defendant caused his vehicle to crash into the Plaintiff's vehicle.

8. At all material times, Defendant, ERNYEPHER PEREZ, was in the course and scope of his employment with Defendant, MENZIES AVIATION (USA), INC.

9. As a direct and proximate result of the Defendant's negligence, the Plaintiff suffered damages described further below.

**COUNT I: NEGLIGENCE OF ERNYEPHER PEREZ**

The Plaintiff re-alleges Paragraphs 1 through 9 and further alleges:

10. The Defendant had a duty to operate and maintain his vehicle in a reasonably safe manner.

11. The Defendant breached his duty by failing to operate his vehicle in a reasonably safe manner, including but not limited to failing to observe his surroundings, failing to control his motor vehicle, failing to maintain a safe distance from other vehicles, or failing to operate or maintain his motor vehicle in a reasonable fashion.

12. As a direct and proximate result of the Defendant's negligence, the Plaintiff suffered bodily injuries resulting in pain and suffering, aggravation of a preexisting condition, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of the ability to earn money. The losses are either permanent or continuing, and the Plaintiff will continue to suffer these losses in the future.

**COUNT II: VICARIOUS LIABILITY OF MENZIES AVIATION (USA), INC.**

The Plaintiff re-alleges Paragraphs 1 through 9 herein and further alleges:

13. The Defendant owned the motor vehicle driven by the Co-Defendant, ERNYEPHER PEREZ.

14. The Co-Defendant operated the Defendant's vehicle with the Defendant's permission and consent.

15. The Defendant, as owner of the vehicle described above, is vicariously liable for damages caused by the Co-Defendant's negligence.

16. In addition, the Defendant is vicariously liable because at the time the above described motor vehicle crash occurred, the Co-Defendant was an employee in the course and scope of his employment with the Defendant.

17. As a direct and proximate result of the Defendant's negligence, the Plaintiff suffered bodily injuries and resulting pain and suffering, disability, disfigurement, aggravation of a pre-existing condition or injury, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of the ability to earn money. The losses are either permanent or continuing, and the Plaintiff will suffer these losses in the future.

WHEREFORE, the Plaintiff demands judgment for damages in excess of \$15,000, together with costs, and the Plaintiff demands a jury trial for all triable issues.

**CERTIFICATE OF SERVICE ON THE FOLLOWING PAGE**

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on the \_\_\_\_\_ day of \_\_\_\_\_, 2019, I electronically filed the foregoing document with the Clerk of the court by using the CM/ECF system, which will send a notice of electronic filing to the following: John Maggio, Esq. and Bartholomew Banino, Esq. (jmaggio@condonlaw.com and bbanino@condonlaw.com).

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